

ORDINANCE #77

The **MAYOR AND BOARD OF ALDERMEN** (the “Governing Body”) of the Town of Decatur, Mississippi (the “Town”), took up for consideration the matter of opting out of the cultivation, processing, sale, and/or distribution of medical cannabis and cannabis product, all as authorized by the Mississippi Medical Cannabis Act of 2022, Senate Bill 2095, 2022 Regular Session, as amended (the “Mississippi Medical Cannabis Act”). After full discussion of the subject, **ALDERPERSON BILL JOHNSTON** offered and moved the adoption of the following resolution:

RESOLUTION OF THE MAYOR AND BOARD OF ALDERMEN TOWN OF DECATUR, MISSISSIPI OPTING OUT OF THE CULTIVATION, PROCESSING, SALE, AND/OR DISTRIBUTION OF MEDICAL CANNABIS AND CANNABIS PRODUCTS WITHIN THE GEOGRAPHICAL LIMITS OF THE TOWN AS AUTHORIZED UNDER THE MISSISSIPPI MEDICAL CANNABIS ACT; AND FOR RELATED PURPOSES.

WHEREAS, the Mississippi Medical Cannabis Act, effective February 2, 2022 (the “Effective Date”), authorizes the cultivation, processing, sale, and/or distribution of medical cannabis and cannabis products in every county and municipality in the State of Mississippi (the “State”); and

WHEREAS, Section 30 of the Mississippi Medical Cannabis Act also authorizes and empowers local governments to opt out of the cultivation, processing, sale, and/or distribution of medical cannabis and cannabis products, as applicable, within ninety (90) days of the Effective Date; and

WHEREAS, by opting out the Governing Body will be able to monitor the social, economic, and financial effects of the cultivation, processing, sale, and/or distribution of medical cannabis and cannabis products in other parts of the State and will be able to opt in at any time in the future pursuant to the provisions of the Mississippi Medical Cannabis Act; and

WHEREAS, it is in the best interest of the citizens of the Town for the Governing Body to opt out of the **CULTIVATION, PROCESSING, SALE, AND/OR DISTRIBUTION** of medical cannabis and cannabis products within geographical limits of the Town; and

WHEREAS, the Governing Body has provided due notice of this meeting as required by the Mississippi Medical Cannabis Act and said notice complies with Sections 25-41-1 *et seq.*, Mississippi Code of 1972, as amended and/or supplemented from time to time (the “Open Meetings Act”); and,

WHEREAS, all conditions, acts, and things required by the Mississippi Medical Cannabis Act, Open Meetings Act, and the Constitution and laws of the State to have existed, to have happened and to have been performed precedent to and in connection with the adoption of the resolution (the “Resolution”), have happened and have been performed in regular and due time, form and manner as required by the law.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE TOWN, ACTING FOR AND ON BEHALF OF THE TOWN, AS FOLLOWS:

Section 1. All statements, findings, and determinations set forth in the above and foregoing recitations are hereby declared to be true and correct and are incorporated herein as facts.

Section 2. The Governing Body hereby opts out of the **CULTIVATION, PROCESSING, SALE, AND/OR DISTRIBUTION** of medical cannabis and cannabis products within the geographical limits of the Town.

Section 3. The Governing Body, acting for and on behalf of the Town, hereby reserves the right to opt in at any time in the future and allow the **CULTIVATION, PROCESSING, SALE, AND/OR DISTRIBUTION** of medical cannabis and cannabis products within the geographical limits of the Town upon a vote of the Governing Body or upon an election of qualified electors duly held in accordance with the Mississippi Medical Cannabis Act.

Section 4. If any one or more of the provisions of this Resolution shall for any reason be held to be illegal or invalid, such as illegality or invalidity shall not affect any of the other provisions of this Resolution, but this Resolution shall be construed and enforced as if such illegal or invalid provision or provisions had not been contained herein.

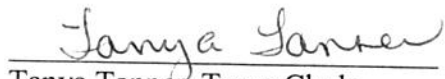
Section 5. This Resolution shall be in effect immediately upon its passage and enactment according to law, or at the earliest date of effect under law, and shall be spread upon the minutes of the Governing Body of the Town.

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Following the reading of the foregoing resolution, **ALDERPERSON DANNY CHERRY** seconded the motion, and the question being put to a roll call vote, the result was as follows:

Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 1, Bill Johnston
Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 2, Mark Buntyn
Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 3, Michael Harris
Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 4, Danny Cherry
Aye	<u> </u>	Nay	<u> </u>	Alderman Ward 5, Phil Sutphin


JAMES "MAX" ANDERSON, Mayor


Tanya Tanner, Town Clerk